

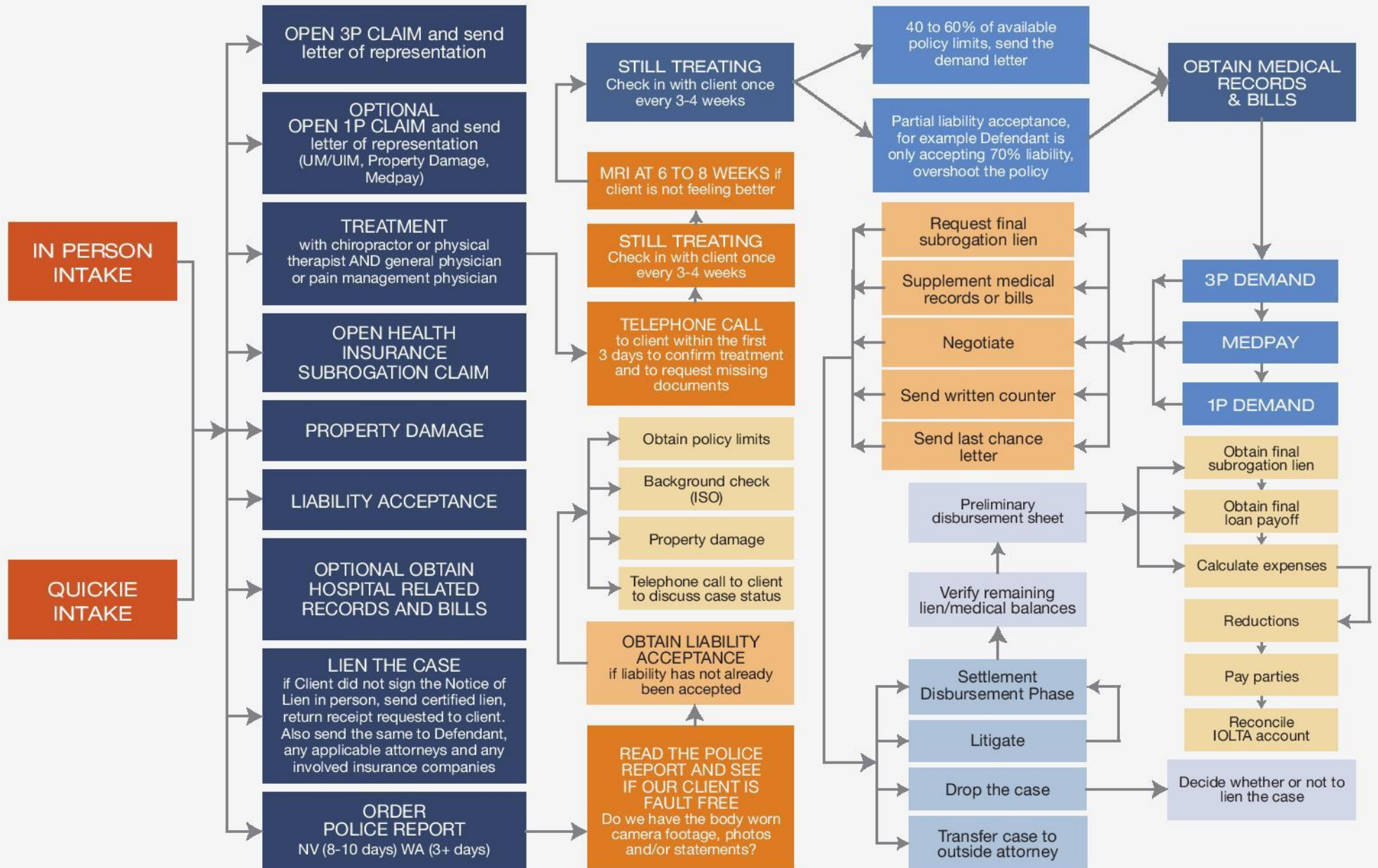
VIRTUAL ASSISTANT TRAINING MODULE

COMPLETE TIMELINE OF
PERSONAL INJURY WORKFLOW

VAN
LAW FIRM



CASE FLOW CHART



THE PERSONAL INJURY WORKFLOW

What is the Personal Injury Workflow?

The Personal Injury Workflow increases the firm's efficiency and productivity by managing the workflow of its personal injury cases. It is similar to an "assembly line" of steps being taken to manage each case from your first contact with the prospective client to the closing of the case, and everything in between.

1. Prospective client contacts firm -
 1. When did the accident happen? (Date)
 2. Did the police come to the scene?
 3. What are your injuries?
 4. Have you been treating?
 5. Do you know how much your medical bills are so far?
 6. IF THIS IS A GOOD CASE - Promptly schedule them in to meet with an attorney. Keep in mind that they likely have transportation issues so ensure that the initial consultation is scheduled at a time that works well for them. We can also go to their home or Starbucks or something. Or we can Uber them into our office as we have an Uber account.
2. During client meetings.
 1. Take a copy of the client's ID as well as health insurance card(s), auto insurance of Plaintiff and Defendant, traffic ticket, and any medical bills they may have.
 2. Have client fill out the MVA Questionnaire.
 3. Intake specialist fill out the Internal Intake form
 4. Generate a project in Filevine fill in information / 4A-case type always MVC Primary 4B-Date of Loss, Text Line, Edit Email Address, SOL, case manager, Date of Intake
 5. Then generate Intake Documents and edit highlighted information.
 6. Get the intake documents signed and notarized.
 7. Have attorney go over fee agreement and case.
 8. Social media screen names
 9. Set initial medical appointments, if necessary; otherwise, obtain contact information for current providers.

10. Request photos of property damage of both vehicles and any visible injuries
 - a. Discuss typical claims process with client so they're aware of the steps you will be taking to help - always best to under promise and over deliver
 - b. Discuss property damage with them.
 - i. Want car fixed or totaled and rental car ASAP - If they want their car fixed or totaled and need a rental car ASAP then they have to go through their own insurance company. They can only do this if they have rental car coverage on their own insurance policy. They also need to pay the deductible and once the third party accepts liability, they will get their deductible back. The insurance company will inspect the car to determine whether it can be fixed or if the vehicle will be totaled as it would cost too much to fix in comparison to the value of the car. If totaled, they will mail a check for the totaled value. A rental car can also be provided through certain body shops (see the list).
 - ii. Can't wait for their car to be fixed/totaled or they do not have rental car coverage on their insurance policy - If they do not have rental car coverage on their insurance policy, then they have to wait until third party accepts liability and fixes their car or totals their car and gives them the money to buy a new car. Just because they are in an accident, the insurance company may or may not accept liability. If they do not accept liability, they need to wait till we ask for the repair value/totaled value in the demand letter.
 - c. Ask them to get a copy of hospital bills and records for you. Also, to save the bills that get sent to their home and bring them to us.
 - d. Have all necessary authorizations and documents signed? Do not forget special HIPPA's for hospitals.
 - e. Encourage client to ask any questions they may have
 - f. Make the client aware that they are only to talk to insurance companies about their property damages and not their injuries or how the accident occurred.
 - g. Set initial medical appointments, if necessary; otherwise, obtain contact information for current providers.
- B. After a thorough meeting with client where all the intake documents were explained and signed.
 - a. Upload Signed Documents and copies of ID, Etc. into Filevine.



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- b. Call Defendant's Insurance Company to set up claims or gather claim information if claim is already set up/ (DO NOT Provide client's SSN DOB phone number, or Address).
 - i. 3rd Party - We need the adjuster's information and claim info.
 - 1. Name of adjuster
 - 2. Address of adjuster
 - 3. Fax
 - 4. Phone
 - 5. Email
 - 6. Claim Number
 - ii. 3rd Party Property Damage (If there is property damage) -ask the Defendant's Insurance Company when they will inspect the vehicle as our client needs a rental car. Obtain property adjuster's information if not the same person as claims adjuster
 - 1. Name of adjuster
 - 2. Address of adjuster
 - 3. Fax
 - 4. Phone
 - 5. Email
 - 6. Claim Number
- c. Send out Letters of Representation to **3rd party adjusters only DO NOT open a 1st party claim** - recommended to send it the same day
 - i. Attach signed General authorization and include preservation language and property damage language if necessary.
 - ii. Calendar 5, 10, 15, 20 days to check to see if we have obtained anything showing receipt from the Defendant's insurance. If not, call Defendant's insurance company. They need to acknowledge a claim within 20 days (NAC 686A.665) and finish their investigation within 30 days (NAC 686A.670)
 - iii. Get to the confirm or deny liability in writing within 30 days. IF they are denying liability, ask them what else they need? A police report, a statement from their client?
- d. Request police report
 - i. LVMPD
 - 1. Attach Police Report Authorization



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2. Requests are emailed to recordsTINC@lvmpd.com
 3. They will send an email TAR is ready. Call with credit card # to pay for it and it will be emailed back.
 4. If TAR shows that there are photos, call 702-828-3595, the Forensics Lab, to verify that there are photos and they will put in the request with the photo lab, they are \$11.
 5. They will call you when photos are ready to pick up.
 6. Photo lab is at 5605 Badura Ave. #120A
- ii. North Las Vegas
 1. Send letter requesting report and attach Police Report Authorization
 2. \$5.00 for report. Statements are an additional \$5.00. Photos are an additional \$10.00.
 3. Mail to department along with a pre-paid envelope and check to North Las Vegas PD.
 - iii. NHP
 1. Send a letter requesting report and all statements and attach Police Report Authorization
 2. \$10.00 for Report, and an additional \$5.00 for Photos
 3. Mail to the Department along with a pre-paid envelope and check to NHP.
 - iv. Henderson
 1. Order via Crash Docs online: <https://secure.crashdocs.org/>
- C. Contact Client within 3-7 days of intake
- a. Do they have stuff that they still need to get to you off of the Client's Needs List? Did they get their car inspected? If they need referrals find them an auto body shop to go to and we need a copy of the highest estimate which is usually the one after the car has been repaired. Remind the client not to get car repaired until it has been inspected by the Defendant's insurance or they will destroy evidence.
 - b. Do they need help with the property damage and getting their car repaired or do they need help with coordinating a rental car?
 - c. Have they begun treatment or do they need help finding medical providers? See if they are treating with the pain management doctor and the chiropractor. A lot of Hispanic clients do not understand that a doctor is different than a chiropractor.



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- d. If we do not have pictures in the file, can they please send us photos of the accident or of their vehicle or injuries?
 - e. If they forgot to bring something in ask them if they can send us a copy of the TAR, ticket, Defendant's Insurance Information, Plaintiff's Insurance Information, Health Insurance information.
- D. Calendar Statute of Limitations (2 years from the date of accident) and Notify Attorney that it has been calendared so they can check that it is calendared.
- E. Add client to Infusionsoft CRM
- F. Check in on client every month to see how they are feeling and if they have any questions and fill out your 30-day case review tab.
- G. Monitor client treatment
 - a. 1 months - 2 months:
 - i. If no improvement:
 - 1. Imaging
 - 2. Review imaging to see if positive findings speak to attorney
- H. Treatment is Done
 - a. Obtain all medical records and billing and update medical matrix
 - b. Once all medical bills and records have been gathered, notify case manager to review and draft demand letter.
 - i. If medicals are $\frac{2}{3}$ of policy limit:
 - 1. Quick demand, 15 day time limit
 - 2. Send UIM Demand
 - a. Quick Demand if medicals are all 3rd party plus $\frac{2}{3}$ of UIM limit
 - b. Long Demand if medicals are less than all of 3rd party plus $\frac{2}{3}$ of UIM limit
 - ii. If medicals are $\frac{1}{2}$ but less than $\frac{2}{3}$ of policy limit:
 - 1. Long Demand for policy limits, 30 day time limit
 - 2. Send Long UIM Demand
 - iii. If medicals are less than $\frac{1}{2}$ of policy limit:
 - 1. Hardly any treatment
 - a. Long Demand for set amount, 30 day time limits
 - b. Only send Long UIM Demand after 3rd party settles
 - 2. Good treatment and good reports
 - a. Long demand for policy limit, 30 day time limits
 - b. Only send Long UIM Demand after 3rd party settles



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- c. Attorney to review demand letter
 - d. When demand letter finalized have demand letter sent out and calendar response due date.
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- I. Did we get a settlement offer?
 - J. Settlement offer conveyed to client and accepted?
 - K. Once we have an accepted settlement offer, negotiate all medical liens including insurance subrogation liens.
 - L. Immediately after getting settlement offer - Ask attorney if we should request raving reviews from this client. Attorney would know whether or not the client is a satisfied client who will give good reviews.
 - M. Calendar to make sure reviews are received every 5 days, 10 days, 15 days, and 20 days.
 - N. Get signed lien reduction letters and W-9s from all medical providers
 - O. Get client to sign disbursal sheet - Once we have final numbers on lien settlements
 - a. Issue checks to medical providers, client, and law firm
 - b. Log client payouts
 - c. Log insurance company payouts
 - d. Log medical provider payouts
 - e. Log health insurance payouts

Important Notes:

- **Document everything you do**, every conversation you have, every letter you send. More details are better; don't use pronouns - use the person's name.
- During the first 2 weeks or so is when the client will have the most questions and will require the most attention. Be proactive and do all that you can to anticipate their needs to ensure they feel as though they made the right choice by hiring a lawyer.
- Often times when we are contacted by prospective clients who are already represented and looking to switch attorneys, their main complaint is that after the initial meeting, they were not able to get a hold of their lawyer and that their questions weren't being answered.